

The Constitution of “ChessBlitz YorkU”

Legislative History

Effective: 07/22/2021. Amended: 07/22/2021, 05/25/2021, 02/15/2021, 02/08/2021, 01/06/2022, 06/22/2022, 08/02/2022, 09/15/2022, 09/24/2022, 03/12/2023, 08/12/2024, 10/15/2024, 04/28/2025, 09/11/2025, 09/21/2026.

Article 1: Name & Objectives

Article 1.1 Name

The name of the organization herein constituted shall be “ChessBlitz YorkU”, abbreviated as “CBYU”

Article 1.2 Objectives

ChessBlitz YorkU’s objectives are:

- providing chess-related events;
- providing chess-related education;
- assisting and encouraging chess-related discussion;
- encouraging members to participate in events and contributing to the growing popularity of the game of chess; and
- increasing awareness of the game of chess to York University students, staff and faculty.

Article 2: Definitions

1. An “executive” refers to a ChessBlitz YorkU executive.
2. An “external event” refers to a chess-related event that is not a ChessBlitz YorkU event.
3. “Collegiate Chess League”, herein abbreviated “CCL” is an international cross-university chess competition created and administered by Chess.com.

Article 3: Interpretation

1. The ChessBlitz YorkU Presidents’ interpretation of the Constitution is the official interpretation of the Constitution.
2. Where the President is not present, the Chair of the meeting will be regarded as the primary source of interpretation of the Constitution and shall be subject to an appeal from meeting members.

Article 4: Membership

1. Membership to ChessBlitz YorkU is open to all York University students, alumni, staff and faculty.
2. There is no membership fee.
3. Every ChessBlitz YorkU member must follow all their York University responsibilities.
4. There exist three (3) levels of membership which are: General Membership, Executive Membership, and Alumni Membership.

Article 4.1: General Membership

Any member who affiliates with the club whether formally (through YUConnect), or informally (through other social media outlets), must be a full-time or part-time student enrolled in a program in the current academic year. Members are entitled to:

- Vote in elections.
- Run for every position in elections except for President and Bookkeeper.
- Participate in general meetings.
- Participate in any activities sponsored by the club.

Article 4.2 Executive Membership

The offered executive positions at ChessBlitz YorkU are:

- President

- Treasurer
- Event Manager
- Outreach Coordinator
- Social Media Coordinator
- Chief Returning Officer
- Tournament Director & Organizer
- CCL Manager
- Community Manager

A member which holds a position on the executive council must be a full-time or part-time student enrolled in a program in the current academic year and is entitled to:

- Vote in elections.
- Run for any position in elections.
- Participate in all general and executive meetings.
- Participate in and organize all activities sponsored by the club.
- Dedicate a significant amount of time to the club.
- Play a role in making any decision.

Article 4.3 Alumni Membership

An Alumni Member of ChessBlitz YorkU is one who:

- Has previously held a position as a general member or executive member and
- Has graduated from a program at York University.

Alumni Members are entitled to:

- Participate in all general meetings.
- Participate in all executive meetings (provided they have served as an executive in the past and are invited by an executive to join an executive meeting).
- Participate in and organize any activities sponsored by the club.

Article 5: Committees

1. The Executive Committee:
 - a. is the only ChessBlitz YorkU committee;
 - b. is composed of all executives with the exception of Community Managers and the Chief Returning Officer.

Article 6: Meetings

1. Executive Meetings:
 - a. are held no less than once a month during the Fall, Winter and Summer terms
 - b. are called and chaired by the ChessBlitz YorkU Presidents;
 - c. have at least a 4-day prior notice;
 - d. have its agenda set by the ChessBlitz YorkU Presidents;
 - e. have voting privileges for all members of the executives committee;
 - f. have speaking privileges for all executives
 - g. have the ChessBlitz YorkU Presidents decide the outcome of a tie vote;
 - h. request that every executive attend. If an executive is unable to attend, they must inform the ChessBlitz YorkU Presidents at least 2 days before the meeting; and
 - i. are conducted according to the decision of the ChessBlitz YorkU Presidents.
2. General Meetings:
 - a. are held once per Fall and Winter term to show ChessBlitz YorkU financial statements and discuss the work of ChessBlitz YorkU;
 - b. are open to all ChessBlitz YorkU members, non-members and executives;
 - c. are called and chaired by the ChessBlitz YorkU Presidents;
 - d. have at least a 7-day prior notice;
 - e. have its agenda set by the ChessBlitz YorkU Presidents;
 - f. have voting and speaking privileges for all ChessBlitz YorkU members; and
 - g. are conducted according to the decision of the ChessBlitz YorkU Presidents.

Article 7: Quorum

The quorum for voting purposes shall be reached when more than 60% of the general members are present, including at least two (2) executives.

Article 8: Executive Roles and Duties

Article 8.1 Executive Composition

The executive members of the club shall be composed of:

- Two (2) Co-Presidents
- One (1) Financial Coordinator
- Four (4) Event Managers
- Three (3) Social Media Coordinators
- Two (2) Outreach Coordinators
- Two (2) Tournament Organizer & Directors
- One (1) CCL Manager
- One (1) Chief Returning Officer
- Two (2) Community Managers

Article 8.2 Duties of General Executive Members

- Attend Executive Meetings
- Represent and support the club positively at all times.
- Each executive member will have a term length of one academic year, starting from the beginning of the Fall semester till the end of the Summer semester of the following year.

Article 8.3 President

- The position is limited to two (2) individuals who previously served a full term as an executive member

The President must:

- Direct how Article 1.2 will be met;
- Ensure Article 1.2 is met;
- Approve or deny plans for ChessBlitz YorkU events;
- Decide whether ChessBlitz YorkU should participate in an external event;
- Manage the ChessBlitz YorkU email;
- Act as the main representative of the club;
- Be familiar with the financial procedures;
- Work with the Financial Coordinator to ensure sustainability of the club;
- Apply for funding from other organizations (YFS, SCLD)
- Ensure that all executive members of the club are acting accordingly and fulfilling their responsibilities and duties; and
- Handle conflict of interest and allegations of wrongdoing cases.

Article 8.4 Financial Coordinator

- This position limited to one (1) individual who previously served a full term as an executive member

The Financial Coordinator must:

- Keep accurate and complete records of the finances of the club;
- Prepare a budget, an opening financial report, and a closing financial report for the club for each term and present them to the executive members;
- Prepare a Financial Statement to be used for YFS re-ratification;
- Present up-to-date financial reports at each executive meeting;
- Maintain an accounting ledger and record all club transactions/reimbursements;
- Check the accuracy and consistency of the previous term's financial records at the beginning of each term; and

- Host Finance meetings before any event that requires financial aid and discuss spending the club budget on events if necessary.

Article 8.5 Event Manager

- This position is limited to four (4) individuals

The Event Manager must:

- Plan, organize, manage, and host ChessBlitz YorkU events;
- Work with other ChessBlitz YorkU Executives to achieve successful planning and organization of events;
- Seek approval from the ChessBlitz YorkU Presidents for the plan of a ChessBlitz YorkU event;
- Organize and allocate resources such as booking rooms, snacks, drinks, and other supplies; and
- Be an effective communicator.

Article 8.6 Social Media Coordinator

- This position is limited to three (3) individuals

The Social Media Coordinator must:

- Plan, design and create social media communications to club members through relevant social media outlets;
- Coordinate and collaborate with the ChessBlitz YorkU executive team to facilitate communication of club events and announcements through the social media outlets utilized by ChessBlitz YorkU;
- Have a good understanding of UI/UX;
- Take quality event photos, post-processing them, and publish them on CBYU's social channels; and
- Be comfortable with design software including Canva, Adobe Suite, MS Paint.

Article 8.7 Outreach Coordinator

- This position is limited to two (2) individuals

The Outreach Coordinator must:

- Coordinate communication with YorkU colleges, other York University clubs, chess clubs from other universities, as well as other organizations;
- Strengthen communication between the Canadian University Chess Championship organizers and the ChessBlitz YorkU executive team; and
- Help organize cross-university events such as sub battles.

Article 8.8 Tournament Organizer & Director

- This position is limited to two (2) individuals

The Tournament Organizer & Director must:

- Plan and manage all CFC-rated tournaments and the CUCC qualifier;
- Be familiar with CFC procedures for advertising, administering and reporting rated tournaments;
- Be proficient with SwissSys tournament tracking software; and
- Work with the Presidents to ensure all CFC procedures are followed.

Article 8.9 CCL Manager

- This position is limited to one (1) individual

The CCL Manager must:

- Be familiar with CCL regulations;
- Be present at every CCL game to support CBYU's players in the CCL;
- Be able to effectively solve any issues that shall arise, including but not limited to, cheating, no-shows, rescheduling and internet issues.

Article 8.10 Chief Returning Officer

- This position is limited to one (1) individual
- The CRO:
 - Shall be appointed one month before election;
 - Shall be a general member of the club or a non-member;
 - Should be an upstanding member of society; and
 - Is familiar with the club, administrative structure, and the mission.

The Chief Returning Officer must:

- Preside, in an independent and transparent manner, over a ChessBlitz YorkU Election and count all votes of a ChessBlitz YorkU Election;
- Not have any conflict of interest in the elections. This includes but is not limited to, running or voting in the ChessBlitz YorkU Elections; and
- Count votes in the election and ensure a smooth transition between executive members.
- Take on the role of the Ombudsperson of the club in charge of any conflict of interest if the current president is absent or unable to deal with the situation.

Article 8.11 Community Manager

- This position is limited to two (2) individuals

The Community Manager must:

- Moderate the CBYU Discord in a fair manner;
- Ensure the rules of the Discord are followed by all members; and
- Report any instances of abuse to the Presidents.

Article 9: Elections

Article 9.1 Election Process

1. The election process applies to the following positions:
 - a. President
 - b. Financial Coordinator
 - c. Event Manager
 - d. Social Media Coordinator
 - e. Outreach Coordinator
 - f. Tournament Organizer & Director
 - g. CCL Manager
2. Executive Elections:
 - a. must be held at least once a year.
 - b. have at least one week notice given prior;
 - c. have the nomination period between April 25 and May 5 of every year;
 - d. have the campaign and voting period between May 6 and May 20 of every year;
 - e. have the ChessBlitz YorkU Chief Returning Officer supervising the electoral process. The ChessBlitz YorkU Chief Returning Officer must be unbiased and approved by the Executive Committee. The ChessBlitz YorkU Chief Returning Officer must count all votes;
 - f. have only registered ChessBlitz YorkU members vote;
 - g. have the voting take place by secret ballot;
 - h. are open to all interested candidates that are ChessBlitz YorkU members;
 - i. have the nomination period include all those interested in executive roles getting nomination signatures from eligible voters;
 - j. have a candidate considered elected to the Executive Committee if they receive a majority vote by the voters;
 - k. have a candidate considered acclaimed to the Executive Committee if they run unopposed;
 - l. have, in the case of a tie, another Executive Election where the only candidates are the tied ones;

- m. have all ChessBlitz YorkU members notified by the ChessBlitz YorkU Chief Returning Officer of the election results at most 48 hours after the campaign and voting period;
 - n. have the leaving executives transfer all knowledge and credentials that is vital to ChessBlitz YorkU operations to the new ChessBlitz YorkU Presidents at most 48 hours after the ChessBlitz YorkU Chief Returning Officer releases the election results; and
 - o. have, in the case of a by-election or vacancy of an executive, the above regulations followed.
- 3. An interested candidate is running for President or Finance Coordinator, they cannot run for any other position.
- 4. If an interested candidate wants to run for more than one executive role in an Executive Election, they must indicate which one of those roles they would hold during the term of the Executive Committee if they were elected to more than one role. The role that they indicate will be known as the candidate's preferred executive role. They are allowed a maximum of three executive roles they can run for.
- 5. If a candidate is elected to more than one executive role in an Executive Election, then the role they will hold during the term of the Executive Committee is the candidate's preferred executive role that they indicated in the Executive Election. The candidate is removed from the other roles that they were elected to and, when possible, those roles must be given to the next highest-voted candidate for those roles.
- 6. If there were no candidates for an executive role in an Executive Election, then the role can be appointed through the application process.
- 7. If there were no candidates for the President or Finance Coordinator positions another election shall be run.

Article 9.2 Application Process

- 1. The application process applies to the following positions
 - a. Chief Returning Officer
 - b. Community Manager
 - c. All Electoral positions that were not filled during the election with the exception of President and Finance Coordinator
- 2. When a position becomes available, the organization shall announce the opening to its members and the university community through appropriate channels, such as the organization's website, social media platforms, and email notifications.
- 3. Interested individuals shall submit applications for open positions within the specified application period. Applications may require submission of a resume, course-schedule or other relevant documents as determined by the organization.
- 4. The Executive Committee shall act as the Selection Committee responsible for reviewing and evaluation applications.
- 5. The Selection Committee may conduct interviews with shortlisted candidates to assess their suitability for the position.
- 6. The Selection Committee shall make decisions regarding the hiring of individuals for open positions via official CBYU channels such as Discord, Email and Instagram. Decisions may be made by consensus or majority vote within the Selection Committee. Successful applicants shall be notified of their selection by email.

Article 10: Removal

- 1. An executive is removed from the Executive Committee if:
 - a. The executive is failing to perform their duties as defined by the ChessBlitz YorkU constitution and by-laws; or
 - b. The executive has lost the confidence of other executives.

2. The motion to remove an executive must pass with at least two-thirds of the executive committee voting for the motion.
3. If an executive is removed from the Executive Committee, a by-election for the role of the removed executive is held.

Article 11: Amendments

1. Amendments to the ChessBlitz YorkU constitution and ChessBlitz YorkU bylaws:
 - a. are created by executives only;
 - b. can be proposed at any time; and
 - c. are adopted by a vote of the Executive Committee.
2. A majority of 75% of the executive committee must agree for amendments to be implemented.

Article 12: Conflict of Interest

1. A conflict of interest exists when an executive uses their executive powers in a way that furthers the private interests of themselves or another entity.
2. If an executive finds themselves in a conflict of interest, they must immediately notify the ChessBlitz YorkU Presidents.
3. If a conflict of interest is found that may affect the executive powers of an executive, either of the ChessBlitz YorkU Presidents may call a meeting wherein the conflict of interest is disclosed to the Executive Committee. In the meeting:
 - a. The executive with the alleged conflict of interest may address the Executive Committee about the issue.
 - b. A vote by the Executive Committee will then be held on the issue of:
 - i. a. whether there is a conflict of interest; and
 - ii. b. whether full disclosure is sufficient.
 - c. If a vote of no to (3.b.ii) of Article 12 happens, the executive with the conflict of interest must eliminate the conflict of interest.

Article 13: Allegations of Wrongdoing

1. This Article applies when a member alleges that another member has violated this Constitution, the bylaws, applicable York University responsibilities, or another ChessBlitz YorkU rule in a manner that may warrant discipline.
2. Any ChessBlitz YorkU member may submit an allegation in writing to chessblitzzyorku@gmail.com or privately to any ChessBlitz YorkU Executive Member. An Executive Member who receives an allegation must promptly forward it to the ChessBlitz YorkU Presidents, unless a President is named in the allegation or has a conflict of interest.
3. The ChessBlitz YorkU Presidents will oversee the investigation. A person who is named in the allegation, directly involved in the events, or otherwise has a conflict of interest must not investigate, review, or vote on the matter. If a President must recuse themselves, the Chief Returning Officer will assume that President's responsibilities under this Article. If the Chief Returning Officer must also recuse themselves or is unavailable, the eligible members of the Executive Committee will appoint an impartial Executive Member or club member to conduct the investigation.
4. The person responsible for the investigation must acknowledge the allegation in writing within 48 hours of receiving it. The respondent must be notified of the substance of the allegation with enough detail to provide a response, subject to reasonable safety and privacy considerations.
5. The investigation must begin promptly and, where reasonably possible, be completed within 14 days after the allegation is received. The investigator will:
 - a. review the written allegation and relevant club records;

- b. give the complainant and respondent separate opportunities to provide a statement, documents, and other relevant information;
 - c. speak with relevant witnesses when necessary; and
 - d. keep a written record of the information reviewed and the findings.
- 6. The investigator's findings must be presented to the eligible members of the Executive Committee. Eligibility is limited to members who are not named in the allegation, were not directly involved in the events, and do not otherwise have a conflict of interest.
- 7. Before any decision is made, the respondent must receive a summary of the findings and a reasonable opportunity to provide a defence or response.
- 8. Quorum for a decision under this Article is more than one-half of the eligible members of the Executive Committee. A finding of wrongdoing and any resulting discipline require a majority of the votes cast. Removal of an Executive Member must also satisfy the two-thirds voting requirement in Article 10.
- 9. If wrongdoing is confirmed, the eligible members of the Executive Committee will determine proportionate discipline, which may include censure, suspension, removal or impeachment, or another corrective measure permitted by this Constitution.
- 10. A written decision, including the reasons and any resulting action, must be provided to the complainant and respondent no later than 21 days after the allegation was received. A non-confidential version of the decision must be made available upon request to members of ChessBlitz YorkU or York University.
- 11. No person may retaliate against a complainant, respondent, witness, investigator, or decision-maker for participating in good faith in a process under this Article. Information must be shared only as reasonably necessary to investigate and decide the matter.

Article 14: Complaints Process

- 1. This Article applies to complaints about a ChessBlitz YorkU decision, service, event, procedure, accessibility issue, administration, or the organization as a whole. A complaint that alleges wrongdoing by a member or may result in discipline must be handled under Article 13. If a submission raises both types of issues, the written acknowledgement must identify which issues will be handled under each Article.
- 2. ChessBlitz YorkU will administer this complaints process in a manner consistent with the principles of openness, accessibility, and democracy in the Regulation Regarding Student Organizations Schedule D.
- 3. Any ChessBlitz YorkU member may submit a complaint in writing to chessblitz yorku@gmail.com or privately to any ChessBlitz YorkU Executive Member. An Executive Member who receives a complaint must promptly forward it to the ChessBlitz YorkU Presidents. An accessible alternative to a written submission will be provided upon request.
- 4. The complainant must receive a written acknowledgement within 48 hours after the complaint is received. The acknowledgement must identify the person responsible for the review, the process that will be followed, and the expected decision date.
- 5. The ChessBlitz YorkU Presidents will coordinate the review. A person who is named in the complaint, directly involved in the matter, or otherwise has a conflict of interest must not review or vote on the complaint. If a President must recuse themselves, the Chief Returning Officer will assume that President's responsibilities under this Article. If the Chief Returning Officer must also recuse themselves or is unavailable, the eligible members of the Executive Committee will appoint an impartial Executive Member or club member to conduct the review.
- 6. The person responsible for the review will:
 - a. confirm the issues raised and the outcome requested by the complainant;
 - b. review relevant records, policies, and prior decisions;
 - c. give the complainant and any person affected by the complaint separate opportunities to provide relevant information; and

- d. prepare written findings and recommended actions.
7. The findings will be presented to the eligible members of the Executive Committee, excluding anyone named in the complaint, directly involved in the matter, or otherwise in a conflict of interest. Quorum is more than one-half of the eligible members, and a decision requires a majority of the votes cast.
8. The eligible members of the Executive Committee may correct or reconsider a decision, provide an accessibility measure, change a policy or procedure, require training, refer an allegation to Article 13, or take another action permitted by this Constitution.
9. A written decision, including the reasons and any resulting action, must be provided to the complainant no later than 21 days after the complaint was received. A non-confidential version of the decision must be made available upon request to members of ChessBlitz YorkU.
10. No person may retaliate against a complainant, participant, reviewer, or decision-maker for participating in good faith in a process under this Article. Information must be shared only as reasonably necessary to review and decide the complaint.

Article 15: Financial Responsibility

1. The ChessBlitz YorkU Presidents are the only signing authorities of ChessBlitz YorkU.
2. The ChessBlitz YorkU Finances Coordinator is responsible for managing the ChessBlitz YorkU budget as well as managing and approving all ChessBlitz YorkU financial records in consultation with the ChessBlitz YorkU Presidents.
3. If ChessBlitz YorkU folds, any remaining funds of ChessBlitz YorkU must be donated to charity.